Revision Date:
2/1/2023

Background:
This section provides staff with instructions for the determination of Medi-Cal eligibility for people in institutions.

Inmates of a public institution who apply for Medi-Cal must be evaluated. Residence in a public institution does not disqualify applicants from Medi-Cal in and of itself. However, if the inmate meets all other eligibility standards, eligibility must be granted and immediately suspended until they are no longer considered inmates of a public institution (see MPG 06.02.05 for suspension policies).

Inmates who receive inpatient care off the grounds of the facility who are otherwise Medi-Cal eligible are eligible to the Medi-Cal Inmate Eligibility Program ((MCIEP), see Article 6, section 2). MCIEP is limited to services inmates receive off the grounds of the institution.

Residents of specific inmate facilities, such as the Male Community Reentry Program (MCRP) and Custody to Community Transitional Reentry Programs (CCTRP), are considered inmates of a public institution. This section was updated with the clarification that MCRP and CCTRP residents are no longer considered inmates of a public institution when they reach the third phase of the program.

Policy:
A. Definition of Public Institutions

The following are identified as public institutions:
- State or Federal prisons
- Correctional facilities
- County, city, or tribal jails
- Detention centers
- California Youth Authority (CYA) camps
- Residential facilities located on the grounds of or adjacent to any large public institution
- Correctional or holding facilities for prisoners or individuals being held under court order as witnesses
- Detention facilities, camps, training schools, or any other facility for children determined to be delinquent
- Education or vocational training institutions that provide an accredited program for its residents
- Alternative custody facilities where the residents are serving their sentence in a community setting (for example, CCTRP, Enhanced Alternative Custody Program (EACP), Female Offender Treatment and Employment Program (FOTEP), MCRP, and county work furlough Programs)

NOTE: People who reside in public institutions to receive educational or vocational training provided by the facility (for example, a state school for the blind) are not considered “inmates” of a public institution..

B. Facilities that are not Public Institutions

The following facilities are not public institutions:

- A medical institution
- An intermediate care facility
- A publicly operated residence that serves no more than 16 residents
- A child care facility that accommodates no more than 25 children
- An institution for intellectually disabled people or persons with related conditions (chronic disability attributed to cerebral palsy, epilepsy, or any other condition other than mental illness closely related to intellectual disability). Eligibility and placement are usually through the San Diego Regional Center
- A community care facility which is maintained and operated to provide 24-hour non-medical care for children and/or adults, including but not limited to, the physically handicapped, mentally impaired, incompetent persons, and neglected or abused children

C. Individuals Considered Inmates of a Public Institution

1. An inmate in a prison or a county, city, or tribal jail
   Note: This includes inmates being held prior to arraignment, conviction, or sentencing. It does not include individuals who are out on bail or their own recognizance
2. An individual, who is incarcerated, but who can leave prison or jail on work release or work furlough and must return at specific times (work furlough)
3. A minor in a juvenile detention center prior to his or her disposition (judgment) due to a criminal activity of the minor
4. A minor who is placed in a detention or correctional facility after detention, including a youth ranch, forestry camp, or home which is part of the criminal justice system
5. A minor placed on juvenile intensive probation by a juvenile court with specific conditions of release, including residence in a juvenile detention center
6. A minor placed on probation by a juvenile court or on juvenile intensive probation to a secure treatment facility contracted with the juvenile detention center if the secure treatment facility is part of the criminal justice system
7. Residents of alternative custody facilities where the inmate serves their sentence in a community setting (for example, CCTRP, MCRP, or work furlough). NOTE: Individuals in county facilities may be eligible to MCIEP if otherwise Medi-Cal eligible. CCTRP and MCRP residents who are in phase three or four of the program are no longer considered inmates of a public institution

D. Individuals Not Considered Inmates of a Public Institution

1. An individual who, after arrest but before booking, is escorted by police to a hospital for medical treatment and held under guard
2. An individual in prison or jail who transfers temporarily (one to two months) to a halfway house or residential treatment facility prior to a formal probation release order
3. An individual who is released from prison or jail, but who is on probation, parole, or release order with one of the following conditions:
   - Home arrest
   - Work release
   - Community service
   - Outpatient treatment

- Inpatient treatment

4. An individual released from prison or jail under a court probation order due to a medical emergency
5. A minor held in a juvenile detention center for care, protection, or in the best interest of the child if:
   - It is prior to disposition (judgment), and
   - There is a specific plan for that minor that makes the stay at the detention center temporary (one to two months)
   - This could include those juveniles awaiting placement but still physically present in juvenile hall
6. A minor placed on probation or juvenile intensive probation by a juvenile court, with home arrest restrictions
7. A minor placed on probation or juvenile intensive probation to a secure treatment facility which contracts with the juvenile detention center, if the secure treatment facility is not part of the criminal justice system. This includes juveniles who become wards of the court and are placed in a 24-hour non-medical residential facility, which provides counseling and other rehabilitative services
8. A minor placed on probation or juvenile intensive probation with treatment in one of the following as a condition of probation:
   - A psychiatric hospital
   - A residential treatment center
   - As an outpatient
9. Individuals with tuberculosis who are under an order of detention in one of the following facilities to protect public health:
   - A residential treatment center
   - A skilled nursing facility
   - A county, city or tribal jail awaiting placement for treatment
10. Individuals in a CCTRP or MCRP program who have reached phase three or four of the program

E. Suspension of Benefits

When an inmate of a public institution applies for Medi-Cal, they must be evaluated. If the inmate is Medi-Cal eligible, benefits must be granted and immediately suspended until release.

NOTE: If an applicant reports an address that is known to be a CCTRP, EACP, FOTEP, or MCRP, Human Services Specialists (HSS) must verify the institutional status of the applicant. Some of these facilities have more than one program and some program residents may be considered inmates of a public institution, and some may not.

CCTRP and MCRP have four phases. Once inmates reach the transitional phase three, they are no longer considered inmates of a public institution and their eligibility must be granted or existing benefits unsuspended as of their phase 3 start date. The HSS may accept the phase listed on application cover letters from CCTRP and MCRP as verification of the phase. The HSS can also accept the customer attestation of the phase three start date. If the customer is unsure of the phase three start date, use the report date as the start date.

F. Medi-Cal Eligibility for Penal Codes Related to Competency to Stand Trial

Penal Code	Description	Eligibility
1367	Applies to individuals charged with a misdemeanor, but who are incompetent to stand trial. Provides that "A person cannot be tried or adjudged to punishment while that person is mentally incompetent." If a judge finds reason to believe that a defendant may be incompetent to stand trial, they may order that the defendant be referred for 72-hour treatment and evaluation.	During the evaluation period, the defendant is entitled to Medi-Cal benefits if otherwise eligible. If the result of the evaluation is that the individual is to be placed in a mental health facility for treatment, they may be entitled to receive Medi-Cal benefits if otherwise eligible.
1370	Applies to individuals charged with a serious felony who are placed in a mental health facility because they were determined incompetent to stand trial. If an individual is still determined to be incompetent after the placement period, a Murphy Conservatorship may be established.	An individual under a Murphy Conservatorship is eligible to Medi-Cal benefits if otherwise eligible.
1372	Applies to defendants who have regained competency. When a defendant returns to court with a certification that competence has been regained, the court will determine if the person is to be released on bail.	An individual released on bail is eligible to receive Medi-Cal benefits if otherwise eligible. If not released on bail and incarcerated, the individual would not be eligible for Medi-Cal benefits.

References:
MEPM 6A, 6B, 6C, 6I
ACWDL 93-55, 14-26
MPG LTR 492, 808
MEDILs 17-23, 18-10, 22-15

Sunset Date:
This policy will be reviewed for continuance on or by 2/28/2026

Approval for Release:



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Self-Sufficiency Services